



Tribunals Ontario
Landlord and Tenant Board

Instructions: Form L9

Application to Collect Rent the Tenant Owes

(Disponible en français)

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Section A: When to use this application

You may use an [Application to Collect the Rent the Tenant Owes \(L9 Application\)](#) if the tenant owes you rent and you want to collect the money the tenant owes.

If the tenant made a payment by cheque that was returned to you because of non-sufficient funds (NSF) and the tenant has not paid you back for the charges related to that NSF cheque, you can also include these amounts in your application.

You **cannot** file this application if the tenant has moved out of the rental unit.

If the tenant moved out of the rental unit on or after September 1, 2021, you may file an [Application to Collect Rent a Former Tenant Owes \(L10 Application\)](#) with the Landlord and Tenant Board (LTB) if you want to collect rent the former tenant owes. A L10 Application cannot be filed more than one year after the date the former tenant moved out.

An order issued by the LTB for a L9 Application is an enforceable order which can be collected as a debt. However, if the tenant does not pay, you cannot use the order to evict the tenant.

If you want to evict your tenant for non-payment of rent, you can complete the [Application to Evict a Tenant for Non-Payment of Rent and to Collect Rent the Tenant Owes \(Form L1\)](#) and file it with the LTB. However, before you file the L1 application, you must give the tenant an [N4 Notice to End your Tenancy for Non-Payment of Rent](#).

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fax number and e-mail address, if you have them.

If there is more than one landlord, fill in information about one of the landlords in this section of Part 3. Provide the names, addresses and telephone numbers of the additional landlords on the [Schedule of Parties Form](#) which is available from the [LTB](#) website at tribunalsontario.ca/ltb.

Tenant Names and Address

In the *Tenant Names and Address* section, fill in the tenant's name. If two tenants live in the rental unit, fill in both their names. If more than two tenants live in the rental unit, fill in information about two tenants in this section of Part 3. Provide the names, addresses and telephone numbers of any additional tenants on the [Schedule of Parties Form](#) which is available from the [LTB](#) website at tribunalsontario.ca/ltb.

Mailing Address

Fill in the tenant's mailing address **only** if it is different from the address of the rental unit. Provide the tenant's daytime and evening telephone numbers. Also provide the tenant's fax number and e-mail address if you know them.

Related Applications

If you or your tenant have filed other applications that relate to this rental unit, and those applications **have not** been resolved, fill in the file numbers in the space provided.

Part 4: Reasons for your application

Shade the appropriate box or boxes to indicate what you are applying for.

Shade either the **Yes** or **No** circle to answer whether or not the tenant is still living in the rental unit on the date you file this application. The tenant must be living in the rental unit when you file this application.

Shade the appropriate circle to indicate whether the tenant pays rent by the **month**, **week** or **other**. If you choose "other", fill in the frequency of rent payments (for example, bi-weekly) in the space provided.

Part 5: Details of the landlord's claim

Section 1: Rent Owing: Complete the Rent Owing table to show how you calculated the amount of rent the tenant owes you.

'Rent' includes the basic rent for the rental unit, plus any amount the tenant pays you separately for services (such as parking). If the tenant is responsible for paying all or a portion of a utility bill (such as hydro) directly to the utility company or indirectly through the landlord, this is **not** considered rent. However, if the tenant is required to pay a flat rate to the landlord each month for a utility, this would meet the definition of rent.

If the tenant owes you rent for more than three rental periods, you can combine two or more rental periods in the first or second row of the table. However, in the last row of the table that you complete, you must show the rent charged, rent paid and rent owing for the last rent period for which the tenant owes rent.

Example: The tenancy agreement between Bruce Campanolo, the landlord, and Sophia Maxwell, the tenant, requires Sophia to pay \$1000 on the first of each month.

On November 1, 2019 Sophia paid only \$900 and on December 1st, she only paid \$700. On January 1, 2019 Sophia gave Bruce a cheque for \$1000 which was returned NSF.

On January 29, Bruce filed this application with the LTB. This is how he filled out the rent owing table:

Rent Period From: (dd/mm/yyyy) To: (dd/mm/yyyy)		Rent Charged \$	Rent Paid \$	Rent Owing \$
01/11/2014	30/11/2014	1,000.00	900.00	100.00
01/12/2014	31/12/2014	1,000.00	700.00	300.00
01/01/2015	31/01/2015	1,000.00	0.00	1,000.00
Total Rent Owing \$				1,400.00

Section 2: NSF Cheque Charges: If the tenant made a payment by cheque that was returned to you because of (NSF), and the tenant has not paid you back for the charges related to the NSF cheque, you can include these amounts in your application. If the tenant does not owe you anything related to NSF charges, leave this section blank.

Complete the table to show how you calculated the amount the tenant owes you. Fill in one row of the table for each NSF cheque the tenant gave you. Include the following information:

- the amount of the cheque,
- the date of the cheque,
- the date your financial institution charged you for the NSF cheque (under *Date NSF Charge Incurred*),
- the amount the bank charged you for the NSF cheque (under *Bank Charge for NSF Cheque*),
- the amount of your related administration charges (under *Landlord's Administration Charge*),

Note: A landlord's administration charge for NSF cheques can include your personal or corporate costs related to the handling of NSF rent cheques. For example, this charge may include the costs for additional accounting expenses or tenant notification in cases of NSF cheques. The **maximum** administration charge for an NSF cheque allowed by the *Residential Tenancies Act (the Act)*, 2006 is \$20 per cheque.

- Calculate the amounts for each row in the *Total Charge* column by adding the amount for *Bank Charge for NSF Cheque* and the amount for *Landlord's Administration Charge*. Do **not** include the *Cheque Amount*.
- Calculate the amount for *Total NSF Related Charges Owing* by adding the amounts you filled in the *Total Charge* column.

Example: Sophia Maxwell, the tenant, gave Bruce Campanolo, the landlord, a cheque for \$1000.00, dated January 1st for January's rent, but the cheque was returned NSF.

As a result, the bank charged Bruce an NSF fee of \$5; the fee appeared on his bank statement on January 14th. Bruce also had costs related to the handling of the NSF cheque.

Bruce filled out the table as shown below to show how he calculated the amount owing for the NSF related charges:

Cheque Amount \$	Date of Cheque dd/mm/yyyy	Date NSF Charge Incurred dd/mm/yyyy	Bank Charge for NSF Cheque \$	Landlord's Administration Charge \$	Total Charge \$
1,000.00	01/01/2015	14/01/2015	5.00	20.00	25.00
	/ /	/ /	.	.	.
	/ /	/ /	.	.	.
Total NSF Related Charges Owing \$					25.00

Part 6: Total amount owing

Transfer the Total Rent Owing amount from Section 1 of Part 5 to the Total Rent Owing field in Part 6.

Transfer the *Total NSF Related Charges Owing* amount from Section 2 of Part 5 to the *Total NSF Cheque Related Charges Owing* field in Part 6.

Under *Application Fee*, fill in the application fee of \$201.

Calculate the amount under *Total Amount Owing* by adding the *Total Rent Owing* amount, the *Total NSF Cheque Related Charges Owing* amount and the application fee. Then, transfer this amount to the box in Part 2. The date you fill in Part 2 is the date you are filing the application with the LTB.

Example: When landlord Bruce Campanolo files this application, tenant Sophia Maxwell owes him \$1400 in rent, \$25 in NSF charges and \$201 for the application fee. This is how Bruce filled out Part 6 of the form:

Total rent owing: (from Part 5, Section 1)	\$	1 4 0 0 0 0
Total NSF cheque related charges owing: (from Part 5, Section 2)	\$	2 5 0 0
Application Fee:	\$	2 0 1 0 0
Total:	\$	1 6 2 6 0 0

Note: the most the LTB can order based on your claim is \$50,000. If you believe the tenant owes you more than \$50,000, and you want to collect the full amount, you should apply to court and not to the LTB. Once the LTB issues an order based on your application, you no longer have any claim to amounts greater than \$50,000 from your tenant.

Part 7: Signature

If you are the landlord, shade the circle marked "Landlord". Then, sign the application form and fill in the date.

If you are the landlord's representative, shade the circle marked "Representative". Then, sign the application form and fill in the date.

Language preference

The LTB offers services in both English and French. If you, your representative, or one of your witnesses would like to receive French Language Services, please select French.

Request for accommodation

The LTB committed to treating all persons with dignity and respect and in a manner that promotes independence. The LTB is committed to providing an inclusive and accessible environment in which all persons have equitable access to our services.

Accommodations are arrangements to allow everyone, regardless of their abilities, to participate fully in the LTB's process.

Complete the Accommodation Request form if you require accommodation under the Ontario *Human Rights Code* or for a procedural fairness need. Provide as much detail as you can about your request for accommodation for your upcoming hearing. Email or mail your completed form to the [LTB](#) office that is handling your file. The [LTB](#) will review your request and make a decision based on the information you provide.

The form and more information about accommodation is available at tribunalsontario.ca/en/request-an-accommodation.

The [LTB](#) will not include a copy of this form when we give the other parties a copy of the application form. However, the information will be included in your application file. The file may be viewed by other parties to the application.

Payment information form

Complete this form to provide the [LTB](#) with the information required to process your application. Your application will not be accepted if you do not pay the application fee at the time you file the application. If you owe money to the [LTB](#) as a result of failing to pay a fee or any fine or costs set out in an order, your application may be refused or discontinued.

You may request a fee waiver if you meet the financial eligibility requirements set out by the [LTB](#). You will need to complete the [Fee Waiver Form](#) which is available from the [LTB](#) website at tribunalsontario.ca/lrb. For more information about fee waivers and the eligibility criteria, go to the fee waiver rules and practice direction on the [Rules of Practice page](#) of the [LTB](#) website.

Payment method

Shade the appropriate box to show whether you are paying by online payment, money order, certified cheque, Visa or MasterCard. You can [pay online](#) using a debit or credit card. If you pay online, email your receipt and application to LTBpayments@ontario.ca.

If you are filing by mail or courier, you can pay by credit card by completing the [Credit Card Payment Form](#) and submitting it with your application. You cannot pay by cash or debit card if you are filing your application by mail or courier.

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Section C: What to include when you file your application

To file this application, you must include the following:

- The completed L9 application form,
- The application fee. For a list of the [LTB's](#) fees visit the [Filing and Fees webpage](#).

Your application will be refused if you do not pay the application fee or make a [Fee Waiver Request](#).

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Section D: How to file your application

You can file your application in one of the following ways:

1. Tribunals Ontario Portal

Complete and pay your L9 application online using the [Tribunals Ontario Portal](#). If you use the Tribunals

Ontario Portal, you must pay by credit card or debit card through the portal and don't need to complete a separate Credit Card Payment Form.

2. By Mail or courier

Mail or courier your L9 application to the nearest [LTB](#) office.

To find a list of [office locations](#) visit the [LTB](#) website at tribunalsontario.ca/l9. You can also call the [LTB](#) at 416-645-8080 or 1-888-332-3234 (toll-free).

If you mail or courier your application, you can pay the application fee by certified cheque, money order, Visa or MasterCard. Certified cheques and money orders must be made payable to the Minister of Finance. If you are filing by mail or courier and paying by Visa or Mastercard, you must complete the [Credit Card Payment Form](#) and submit it with your application.

3. By Fax

Effective December 31, 2021, the [LTB](#) has decommissioned its fax machines assigned to regional offices. This means that except for a limited number of circumstances, the [LTB](#) no longer accepts documents, including applications, by fax.

If you must use fax to file applications or submit documents urgently because you don't have access to a computer and/or internet or can't visit a local ServiceOntario office, applicants can fax applications and documents that don't have a fee associated, or where they are eligible for a fee waiver, to 1-833-610-2242 or (416) 326-6455.

Due to Payment Card Industry (PCI) security compliance requirements, the [LTB](#) can no longer accept credit card payment via fax. Applications with credit card information will be automatically deleted and not processed. Please contact the [LTB](#) at 1-888-332-3234 for information on how to submit payment information.

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Section E: What to do if you have any questions

You can visit the [LTB](#) website at: tribunalsontario.ca/l9.

You can call the [LTB](#) at 416-645-8080 from within the Toronto calling area, or toll- free at 1-888-332-3234 from outside Toronto, and speak to one of our Customer Service Officers.

Customer Service Officers are available Monday to Friday, except holidays, from 8:30 a.m. to 5:00 p.m. They can provide you with **information** about the *Residential Tenancies Act* and the [LTB](#)'s processes; they cannot provide you with legal advice. You can also access our automated information menu at the same numbers listed above 24 hours a day, 7 days a week.

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